

**MINUTES
ANNUAL GENERAL MEETING**

CARLETON CONDOMINIUM CORPORATION NO. 276

**Thursday, May 16, 2013
(Greenboro Community Centre, 363 Lorry Greenburg Drive Ottawa, ON)**

Present: Directors: Michel Savoie, President
Magdalen Kayanja, Treasurer

Property Manager: Stefan Novak

Recording Secretary: Jo-Anne Carole Fahey

Regrets:

Director: Stephanie Caught, Secretary
Auditor: Nicholas Ralph CA

1. Call to Order

2. Property Manager Mr. Stefan Novak called the meeting to order at 7:16 p.m.

CARRIED

3. Appointment of Scrutineers

The following scrutineers were appointed for the meeting: Mr. Guy Gagnon from 432 Sandhamn Private & Mrs. Elsie Comeau from 484 Sandhamn Private.

4. Proof of Notice

Mr. Michel Savoie, President from 407 Sandhamn Private, read the notice of the meeting indicating that proper notice was given to conduct the Annual General Meeting.

CARRIED

5. Establish the Presence of a Quorum

CONFIRMATION OF QUORUM:

A Quorum was confirmed for CCC No. 276's meeting as follows:

Present in Proxy	15
Present in Person	5

For a total of 79 owners represented.

A Quorum of 25% is required for each condominium to conduct business.

A quorum was established with a total of 20 units represented (15 in person and 5 by proxy); therefore the meeting of the owners of Carleton Condominium Corporation No. 276 was duly constituted to conduct the business of the Annual General Meeting.

Mr. Stefan Novak asked for a motion to dispense with the reading of the notice of meetings for CCC No. 276.

Moved by Mr. Guy Gagnon from 432 Sandhamn Private
Seconded by 484 Sandhamn Private Motion Carried.

6. Introduction of the Head Table

Mr. Stefan Novak introduced the Head Table consisting of himself, Mr. Michel Savoie, the President from 407 Sandhamn Private, Mrs. Magdalen Kyanja, the Treasurer from 409 Sandhamn Private, and Mrs. Jo-Anne Carole Fahey, the Recording Secretary.

7. Auditor's Financial Report

The President turned the meeting over to the Corporation's Property Manager, Stefan Novak due to the fact that the Auditor, Mr. Nicholas Ralph, who reviewed the financial statements for the year ending December 31, 2012, was not present at the meeting.

Mr. Novak on behalf of the Corporation's Auditor presented the financial statements for the year ending December 31, 2012.

He highlighted that the Independent Auditor's Report, Statement of Financial Position, Statement of Fund Operations and Changes in Net Assets, Statement of Cash Flow and the Notes to the Financial Statements were all included with the financial statements.

Mr. Novak stated that he is presenting what is known as a standard audit report, along with the professional opinion from the Auditor on the numbers provided within the statements.

Mr. Novak itemized that the necessity to increase contributions (in accordance under subsection 94(8) of the Condominium Act 1998) to ensure sufficient future funding of the operating and reserve fund requires a special assessment of \$ 250.00 total per unit.

The Corporation, as required by the Condominium Act 1998, has established a Reserve Fund to finance future major repair and replacement of the common elements and assets of the Corporation.

The Board of Directors have used the Reserve Fund Study by Laviolette building Engineering Inc. dated November 23, 2011, and such other information as was available to them in evaluating the adequacy of the Reserve Fund. The Board has accepted the recommendations of the study which suggests the allocations to be made to the Reserve Fund each year from 2011 to 2041. The Suggested and actual amounts were as follows:

	Suggested 2012	Actual 2012
Opening Balance	206365	186609
Contributions	102950	102950
Interest Earned	6571	2095
Expenditures	(90200)	(64939)
Closing Balance	228686	226718
Amounts invested and held on cash		207526
Amounts over(under) invested-based on actual results	(19192)	
Amount over(under)-based on amounts suggested in the Reserve Funds	(21,160)	

The Reserve Fund Study suggests that future allocations to the Reserve Fund be \$102,950 a year through 2018 inclusive, increasing thereafter at the rate of inflation, which the Reserve Fund Study assumes to be 2.5% a year.

Any evaluation of the adequacy of the Reserve Fund is based upon assumptions as to the future interest and inflation rates and estimates of the life expectancy of the building components and their replacements costs. These factors are subject to the change over time and the changes may be material: accordingly, the Condominium Act requires the Reserve Fund studies be updated every three years.

The years in which various works were suggested to take place by the Reserve Fund Study, the aggregate expenditures suggested by the Reserve Fund Study and the actual expenditures from the Reserve Fund, for the two years ended December 31, 2012, and the variances between them, were:

	Suggested	Actual	Variance
Contingency(actual expenditures: tree pruning, general)	6075	10922	-4,847
Asphalt Shingle Roofing – Main Roofs (2019)		38677	-38,677
Asphalt Shingle Roofing – Garage Roofs (2011)	4000	-	4000
Eavestrough System 2011	13000	12656	344
Entry Doors including Sidelights (2019)	-	12554	-12,656
Garage Doors (2011)	2000	-	2000

Painting, Caulking, and Wood Repairs (2011)	46,125	22,461	23,664
Sliding Glass Patio Door (2011)	70,000	78,259	-8,259
Wood Decks (2012)	41,000	-	41,000
Reserve Fund Study	4500	5085	-585
	186,700	180,614	6,086

NOTE: The variances, and the differences in timing of suggested and actual expenditures, may have a negative effect on the adequacy of the Reserve Funds.

The necessity to increase contributions (in accordance with subsection 94(8) of the Condominium Act 1998) to ensure sufficient future funding of the operation and reserve fund has required a special assessment of \$ 250.00 in total (per unit). The Special Assessment can be paid in a lump sum payment or four payments of \$ 62.50 from July 01, 2013 through October 31, 2013.

Owners agreed to this all in favour to levy a Special Assessment to top up the (under)-based amount of \$19,750.00 suggested in the Reserve Funds.

8. Approval to receive the Auditor's Financial Report

Mr. Guy Gagnon, #432 Sandhamn Private motioned and Ms. Elsie Comeau, # 484 Sandhamn Private seconded to receive the Auditors Financial Report. There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

9. Appointment of Auditor

Mr. Guy Gagnon, #432 Sandhamn Private motioned and Ms. Elsie Comeau, # 484 Sandhamn Private seconded to look for other estimates for the auditor to ensure that the Corporation is not over charged. Mr. Novak will present tree estimates to the Board to make a decision on the new Auditor.

Mr. Mitch Savoie thinks that the Auditor is much to expensive at \$3500. Mr. Christopher Saindon, #414 Sandhamn Private, asked if the auditor was very expensive. Mr. Dimitry Durand, #413 Sandhamn Private, wants it done quarterly perhaps so that the condo fees aren't always going up. Property Manager explains that audit has to be done once a year – it is the Condominium Act. Mr. Christopher Saindon, #414 Sandhamn Private, asks how the auditor is found - wonders if it could go out to tender. .

Property Manager, Stefan Novak, was asked to look for four new quotes for a new auditor. It was motioned by Liza Godbole, #428 Sandhamn, & seconded by Mr. Christopher Saindon , #414 Sandhamn.

Mr. Guy Gagnon, #432 Sandhamn Private advised that the audit was hard to read and it would be nice that it is easier to understand in future.

Mr. Dimitry Durand, #413 Sandhamn Private, asked why we pay for heat in the office. The Property Manager, Mr. Novak, explained that the payment for the heat is minimum and it was required that the pipes do not break in the winter.

Mrs. Elsie Marie Comeau, from 484 Sandhamn Private, asked what was covered in the Corporation's Insurance. The Property Manager, Mr. Stefan Novak, explained what insurance covered.

Mr. Guy Gagnon, #432 Sandhamn Private asked what were the projects scheduled for this year. The Property Manager, Mr. Stefan Novak, explained that as per the Reserve Funds, paving, driveways, decks, will be done.

Mrs. Elsie Marie Comeau, from 484 Sandhamn Private, felt that the driveways should be not be done.

10. Approval of Minutes of the Annual General Meeting of May 17, 2012

Ms. Betty Flack, #453 Sandhamn Private motioned and Ms. Janet Buske-Wichser, #501 Sandhamn Private seconded, all in favour, to approve and accept the minutes from the Annual General Meeting held on May 17, 2012.

CARRIED

11. Election of Two Directors each for a One-year Term Pursuant to Section 51(6) of the Condominium Act

It was noted one new Director is required. The President, Mr. Michel Savoie, then opened up the floor to nominations.

Ms. Johanne Neville from 440 Sandhamn Private volunteered to sit on the Board.

Ms. Betty Flack from 453 Sandhamn Private motioned and Mr. Michel Savoie, the president, from 407 Sandhamn Private, seconded to nominate Ms. Johanne Neville from 440 Sandhamn Private. Ms. Johanne Neville in turn accepted the nomination.

With no other nominations put forward, it was agreed to close nominations. There were no homeowners opposed to this, no abstentions; therefore this was carried unanimously.

CARRIED

The new members of the Board of Directors for are:

1. Mr. Mitch Savoie, from 407 Sandhamn Private
2. Ms. Madalen Kayanja, from 409 Sandhamn Private
3. Ms. Ms. Johanne Neville, from 440 Sandhamn Private

The three Board members then briefly described why they wanted to participate on the Board of Directors.

12. President's Report

Mr. Michel Savoie, the president, highlighted the following:

- The landscaping contractor was changed due to a lot of complaints received. As well, the new contract price is \$20,000 cheaper than the previous contractor.
- Grass cutting is scheduled on Wednesdays weather permitting. If need be, it could be done on a Friday.
- Aeration and fertilization has been added to the contract.
- In the past year there was some money spent in the reserve fund on front doors, with a few more to be completed this year.
- Eavestroughs were installed in the upper roofs. This is normally the responsibility of the homeowner, but the Board felt that it would save the structures of home and money in the long run if it was all done by the Condominium Corporation.
- Many roof replacements were done.
- Some trees were lost due to the diseases
- The Reserve Fund Study was renewed.

13. Forms

The Property Manager, Stefan Novak highlighted the forms that were included in the Annual General Meeting package and noted their importance:

- It is law in Ontario to have completed Smoke Detector forms indicating that each unit has functioning smoke alarms on every story of each unit. Mr. Novak requested that the form be completed and returned to him.
- Form 15 refers to the Reserve Fund Study. Mr. Novak indicated that an update to the study is required every three years.
- The Preauthorized Payment Form allows unit owners to have their Condominium Fees automatically paid from their bank accounts. If a unit owner prefers this option they simply need to complete the form and return it to the Property Manager.
- The Insurance Certificate was provided for information only to homeowners.
- Proxy forms were provided for the meeting and were available for owners unable to attend the meeting. They refer to general matters discussed at the meeting and for the election process.

- For units that were rented the Summary of Lease or Renewal Form 5 was required for the Property Manager. If a unit has a tenant this form needed to be completed and returned to the Property Manager.

14. General Discussion and New Business

- Mrs. Elsie Marie Comeau from 484 Sandhamn Private, asked the following questions:
 - How many rentals.
 - Explained that the landscaping company were ruining the grass with tractors, they were not using the lawn mowers.
 - Asked to clean the drains.
 - Said that the garbage is put out too early. The owner should respect the rules and regulations of the Corporation.
 - Trees planted still have the post in the trees. Property Manager will remove the poles. Willow trees in the back yard. Contractor is scheduled to take the willow trees. Mitch & Stefan will get the trees removed. Shingles are now coming off because of these trees.
 - New eavestroughs are being run over by tractor
- Ms. Janet Buske-Wichser, from 501 Sandhamn Private, remembered that a few years ago we went with a cheaper company. You get what you pay for. We made this decision last year to cut the fee & now we are paying for it.
- Mr. Dimitry Durand, from 413 Sandhamn Private, said that people are driving too fast on street. Maybe install speed bumps to slow them down.
- Mr. Guy Gagnon, from 432 Sandhamn Private, said that the grass this year they are using the push mover on his lawn this year & he is very happy. Shrubs need to be trimmed. Common area especially needs to be cut back.
- Mrs. Elena Korotich, from 414 Sandhamn Private did not keep weeds cleaned, now her yard is completely filled.
- Mr. Dimitry Durand, from 413 Sandhamn Private mentioned that there the satellites dishes are still up at some homes. Moreover, he felt that water meters should be installed for each unit.
- Mr. Guy Gagnon, from 432 Sandhamn Private said that this has been brought up for 12 years and it is too expensive to incorporate.
- Mr. Dimitry Durand, from 413 Sandhamn Private still felt that they should install the water meters in each unit.
- Mrs. Elena Korotich, from 414 Sandhamn Private enquired if the offenders be paying extra for water consumption.

- Mr. Christopher Saindon, from 414 Sandhamn Private asked if the Board or Property Manager could reply to owners requests sooner than 48 hours.

15. Termination of Meeting

There being no further general discussion and no further business to conduct, Mr. Guy Gagnon, from 432 Sandhamn Private, motioned and Ms. Betty Flack, from 453 Sandhamn Private seconded to terminate the Annual General Meeting of Carleton Condominium Corporation No. 276 at 9:59 p.m.

Approved by Board of Directors:

PRESIDENT

SECRETARY

DATE